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24VECV04425 ARANDA V CITY OF LOS ANGELES

[TENTATIVE] ORDER: Defendant City of Los Angeles' Motion for Summary Judgment is DENIED.

Defendant City of Los Angeles' Alternative Motion for Summary Adjudication is GRANTED as to the part of Issue 1 regarding the first cause of action's claim for direct liability; as to Issue 2 regarding the second cause of action; and as to Issue 3 regarding the third cause of action; and DENIED as to the part of Issue 1 regarding the first cause of action's claim for vicarious liability and DENIED as to Issue 4 regarding the affirmative defenses based upon statutory immunities.

Defendant City of Los Angeles' Evidentiary Objections as to the Declaration of Adam Bercovici is OVERRULED.

Introduction

Defendant City of Los Angeles (Defendant) moved for summary judgment (MSJ) against Plaintiff Harold Aranda's (Plaintiff) Complaint. Alternatively, Defendant moved for summary adjudication (MSA) raised four issues to be adjudicated. The first three issues were against each of the three causes of action (COA) for public entity liability, false arrest, and Bane Act violation (Civ. Code, sec. 52.1). The fourth issue to be adjudicated is the defense of immunity per Government Code, sections 820.2, 820.8, 845.6, 855.6, and Penal Code, section 835.

Procedure

Defendant asserted that there is no triable issue of fact as to a part of the first COA that alleged direct liability for negligent hiring, training, supervision, and education, the second COA for false arrest, and third COA for the Bane Act violation. Defendant argued that the direct liability claim is barred because the claim does not exist. Defendant argued that no triable issue exists as to false arrest because the Los Angeles Police Department's (LAPD) Officers detained and transported Plaintiff based upon reasonable suspicion of Driving Under the Influence (DUI) and probable cause. Defendant argued that no triable issue of fact exists as to the Bane Act violation because the COA is dependent on the other claims and cannot present facts as to any intentional constitutional violation or facts as to any threat, intimidation, or coercion. Plaintiff submitted to the arguments against a part of the first COA related to direct liability, the entirety of the second and third COAs. Because Plaintiff submitted to Defendant's arguments/facts, the MSA as to these issues are sufficiently argued.

The MSA Issue 1 as to the direct liability claim in the first COA is GRANTED. The MSA Issue 2 as to the second COA is GRANTED. The MSA Issue 3 as to the third COA is GRANTED.

In conjunction with the Reply, Defendant filed "Objections and Response to "Plaintiff's Separate Statement of Disputed Material Facts in Support of the Opposition" nos. 1-95. However, the summary judgment statute bars a reply separate statement. (Code Civ. Proc., sec. 437c(b)(4).) Because Defendant submitted a separate statement with the Reply and in violation of the statute, the Court did not consider Defendant's Reply Separate Statement.

Discussion

Defendant asserted that there is no triable issue of fact as to the vicarious liability claim in the first COA. Defendant argued that there is no triable issue of fact as to breach because the facts show that the Officers acted reasonably and there was no breach of the standard of care based upon the

totality of circumstances. In support of the contention, Defendant's separate statement presented a detailed chronology of the events going through the LAPD Officers' first contact with Plaintiff, through Plaintiff's arrest/detainment, and the LAPD Officers' last contact with Plaintiff at Plaintiff's home.

Making a determination that a police officer's decisions and/or conduct is within the standard of care and/or reasonable would necessarily require expert testimony since the subject matter of the claim (i.e., police negligence) involves professional or technical knowledge beyond the common understanding of laypersons.

The exception for the need to present expert testimony is when negligence would be obvious to a layperson.

(Garibay v. Hemmat (2008) 161 Cal.App.4th 735, 741.) Whether Defendant's conduct was negligent or not is not obvious. At the initial contact with Plaintiff, Officers Farfan and Flores summoned paramedics, overriding Plaintiff's refusal for treatment based upon Plaintiff informing the Officers of his diabetic condition and newly prescribed medication. Plaintiff then refused to go to the hospital with the paramedics. (Defendant's

Separate Statement of Facts (DSSF) 1-32.)

Had the interaction ended at that instant, the facts would be straightforward and a layperson can determine that the Officers met their standard of care and acted reasonably by summoning paramedics over Plaintiff's objections. However, the contact with Plaintiff continued to move forward.

Farfan and Flores continued with their Driving Under the Influence (DUI) investigation and conducted the field sobriety test for alcohol at the accident location. Plaintiff did not pass. Plaintiff was handcuffed and taken to the station so that a chemical breath test could be administered. The result showed that Plaintiff did not have alcohol in his system but the Officers suspected Plaintiff was under the influence of drugs. (DSSF 33-44.) Sergeant Anthony Duran then conducted a Drug Recognition Exam (DRE). But prior to the DRE, Plaintiff complained to Duran of diabetic shock and listed a litany of symptoms. Sergeant Duran asked if Plaintiff needed to go to the hospital and Plaintiff refused. Duran completed the DRE and Plaintiff passed. (DSSF 45-51.) Because Plaintiff passed the DRE, the Officers concluded that no crime had been committed and there was no reason to further detain Plaintiff. (DSSF

52-53.) At this point, it is inferred

that the Officers concluded that the reason for Plaintiff's conduct is that he was suffering a medical condition since alcohol and drug use were ruled out. Further, the events occurring after Plaintiff's release also showed that the Officers knew of his medical condition because Farfan and Flores drove Plaintiff home and aided Plaintiff into his bedroom, notified Plaintiff's landlord/roommate of his condition, and told the landlord/roommate to call an ambulance if the need arose. (DSSF

52-61.) These facts present triable

issues of fact as to whether Duran should have summoned paramedics again, despite Plaintiff's refusal, when Plaintiff complained of a medical condition in the holding cell and whether Farfan and Flores should have taken Plaintiff to the hospital despite Plaintiff's refusal because alcohol and drug use were ruled out as causes for Plaintiff's continued imbalance and slurred speech.

Reviewing the events of the entire evening, a layperson

could not determine if the Officers conducted themselves within the standard of care because it is unclear if all the Officers should have obtained treatment for Plaintiff over his objections once alcohol and drug use were ruled out while they were at the station or at the point of drop off at Plaintiff's home. The totality of the interactions from when Farfan and Flores first contacted Plaintiff to when Plaintiff was dropped off at his home do not lead to a singular conclusion that a breach either did or did not exist. Because the events were not straightforward but complex, an expert declaration testifying that there is no triable issue of fact as to breach was necessary for Defendant to meet their initial burden. Because expert testimony was not presented, Defendant failed to meet their initial burden. The burden did not shift to Plaintiff to show that a triable issue of fact exists.

Good cause is presented to deny the MSA as to the vicarious liability claim in the first COA.

Even if the totality of the chronology of events of that

evening, without any expert testimony, could be sufficient to show that all the Officers were not negligent (i.e., Defendant met their initial burden on the MSA), Plaintiff provided additional facts to show that the Officers' breached their duty of care and/or was not reasonable in their conduct. Plaintiff presented expert testimony to show that the Officers' conduct breached the standard of care because the Officers

released Plaintiff to Plaintiff's landlord/roommate and/or failed to take Plaintiff to the Department Jail Dispensary, L.A. County Medical Center or the hospital after determining Plaintiff was not under the influence of alcohol or drugs and Plaintiff was suffering a medical condition. Plaintiff further provided that LAPD's Manual required Officers to seek medical treatment even when the person refuses treatment. Because Defendant released Plaintiff with the knowledge that Plaintiff was suffering some medical condition and not overriding Plaintiff's second refusal to be treated, facts are presented to show a triable issue as to breach and/or unreasonable conduct exists. (Plaintiff's Statement of Disputed Facts (PSDF) 18-19, 30-32; Plaintiff's Statement of Additional Facts (PSAF) 82-85, 88-95.) Defendant asserted that the LAPD Manual is not sufficient grounds to cite a mandatory duty. However, the argument misses the point. The LAPD Manual is not being presented to show a mandatory duty but is a circumstance to determine whether a breach occurred or not. Had the burden transferred to Plaintiff, Plaintiff would have met their burden to show that a triable issue of fact exists as to the element of breach.

Plaintiff asserted that a duty of care exists because of a "special relationship" between Plaintiff and LAPD. However, the element of duty was not raised as an issue in the MSJ/MSA. Defendant submitted that they had a duty of care owed to Plaintiff. Plaintiff's arguments as to a duty arising from a "special relationship" misses the point of the MSJ/MSA.

Defendant's MSA Issue 1, as to vicarious liability claim in the first COA, is DENIED.

NOTE: An inference in Defendant's argument that they complied with their duty when they summoned the paramedics at the accident site is that Defendant's duty ended at that point in time or that Defendant did not have a continuing duty to care for Plaintiff or a duty to override Plaintiff's second refusal at the station. However, here Defendant detained/arrested Plaintiff and took him to the station for more investigation. Once handcuffed, Plaintiff's ability to move about is restricted and Plaintiff relies upon Defendant. Further, it is unclear if Plaintiff was in the right state of mind to refuse treatment since he was suffering from a stroke.

Defendant's MSA Issue 4 argued that there is no triable issue of fact as to the defenses based upon statutory immunities per Government Code, sections 820.2 [immunity for discretionary act], 820.8 [liability for own

act and not for others acts]/Penal Code, section 835 [defining method of arrest], 845.6 [liability for failing to furnish/obtain medical care for prisoner], and 855.6 [immunity for failure to make or for an inadequate physical or mental exam]. Preliminarily as to all the asserted immunities cited in MSA Issue 4, Defendant's Separate Statement included the same 61 facts used in MSA Issue 1. As analyzed above, the Court found triable issues of fact as to several of Defendant's facts and even if Defendant met their burden to show that no triable issue of facts exists, the Court found that Plaintiff met their burden to show that a triable issue of fact based upon the Plaintiff's disputes to Defendant's Separate Statement and Plaintiff's Additional Statement of Facts. Because Defendant used the exact same set of facts that supported the MSA Issue 1, triable issues of fact exist as to MSA Issue 4 and there are grounds to deny MSA Issue 4.

Even if the immunities are considered solely as a legal issue, the Court does not find the arguments to be sufficient to support the affirmative defenses. Defendant argued that they are immune from liability for discretionary acts. (Gov. Code, sec. 820.2.) However, Plaintiff provided that the discretionary acts immunity is limited to basic policy decisions that have been expressly committed to coordinate branches of government. (Barner v. Leeds (2000) 24 Cal.4th 676, 684-685.) The decisions made by the Officers were not basic policy decisions but operational decisions that are seen as lower-level decisions that implement a basic policy. Defendant did not respond to the contention in their Reply and is seen to submit to Plaintiff's argument. The Court agrees with Plaintiff and the discretionary acts immunity is inapplicable to the facts of this case. Defendant failed to meet their initial burden on the discretionary acts immunity defense and MSA Issue 4 as to this immunity is DENIED.

Defendant argued that there is no government liability for an injury caused by the act or omission of another person. However, Government Code, section 820.8 further provided that this section does not exonerate a public employee from liability for injury caused by his own negligent or wrongful act or omission. (Gov. Code, sec. 820.8 and Pen. Code, sec. 835.) Initially, Defendant appeared to have argued this defense against the third COA for the Bane Act violation. However, that COA is no longer at issue. To the extent that Defendant argued this defense against the first COA, the claims in the Complaint are expressly alleged against each Officers' act or omission. So, the defense is inapplicable when

reviewing the Officers' acts or omissions.

Further, there are no allegations in the Complaint regarding any act or omission by the Los Angeles Fire Department (LAFD) paramedics. The claims within the four corners of the pleading limits the scope of the MSJ/MSA.

Without any claims in the Complaint related to the LAFD, any defense for such claims is inapplicable. It is noted that Plaintiff raised issues of fact regarding LAFD paramedics treatment of Plaintiff at the scene and whether Plaintiff was advised to go to the hospital and issues regarding the signing of LAFD's digital release of liability. However, these facts go beyond the scope of the MSJ/MSA and the Complaint. Because facts as to LAFD's treatment of Plaintiff are beyond the scope of the Complaint and MSJ/MSA, Plaintiff's arguments and citation to facts related to the LAFD are inconsequential and insufficient to raise an issue of fact. In any event, Plaintiff expressly alleged that each Officer is liable for their own negligent act or omission and the defense as it relates to the Officers conduct is unpersuasive. The MSA Issue 4 as to Government Code section 820.8 and Penal Code section 835 is DENIED.

Defendant's MSA Issue 4 further argued that Defendant cannot be liable for failure of an employee to furnish or obtain medical care for a prisoner in custody. (Gov. Code, sec. 845.6.) Defendant asserted that no triable issue of fact exists because the Officers summoned the paramedics at the scene of the accident and Plaintiff refused treatment/hospitalization and Officers again asked at the station to take Plaintiff to the hospital but again Plaintiff refused. However, as reviewed above, triable issues of fact exist as to whether the Officers breached their duty by not overriding Plaintiff's refusal to go to the hospital when asked at the station and whether the Officers breached their duty by taking Plaintiff home. Defendant's reliance upon Government Code, section 845.6 is unpersuasive. The MSA Issue 4 as to Government Code section 845.6 is DENIED.

Defendant then asserted they are not "liable for injury caused by the failure to make a physical or mental examination, or to make an adequate physical or mental examination, of any person for the purpose of determining whether such person has a disease or physical or mental condition that would constitute a hazard to the health or safety of himself or others." (Gov. Code, sec. 855.6.) As was the case with the above analysis of Government Code, section 820.8/Penal Code, section 835, the scope of the claims

in the Complaint limits the scope of the MSJ/MSA and there are no grounds to claim liability based upon any act or omission of the LAFD paramedics. To the extent that Defendant is arguing that LAPD Officers are not liable for performing a medical exam, the argument is a strawman argument. Plaintiff is not alleging any failure to perform a medical exam against LAPD Officers. The claim is for the failure to summon medical care by medical professionals.

The Court does not find that Government Code, section 855.6 applies to the claims alleged by Plaintiff. The MSA Issue 4 as to Government Code section 855.6 is DENIED.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.